4019

Executive Order

Establishing and Declaring Certain Property in the Republic of Panama to be a part of the Canal Zone for the construction, maintenance, operation, sanitation, and protection of the Panama Canal.

WHEREAS, by the treaty between the United States of America and the Republic of Panama to insure the construction, maintenance, operation, sanitation, and protection of a ship canal across the Isthmus of Panama to connect the Atlantic and Pacific Oceans, ratified under date of February 26, 1904, the Republic of Panama granted to the United States of America in perpetuity the use, occupation, and control of a zone of land and lands under water ten miles in width for the construction, maintenance, operation, sanitation, and protection of the said canal, and the use, occupation, and control in perpetuity of any other lands and waters outside of the said zone which may be necessary and convenient for the construction, maintenance, operation, sanitation, and protection of the said canal;

AND WHEREAS, the use, occupation, and control of the lands, hereinafter described, situated outside the limits of the said ten-mile zone and within the Republic of Panama are deemed necessary for the maintenance, operation, sanitation, and protection of the said canal:

NOW, THEREFORE, I, Calvin Coolidge, President of the United States of America, by virtue of the authority granted by the said treaty and of the authority vested in me by the laws of the United States of America made and provided do hereby set apart for the maintenance, operation, sanitation, and protection of the Panama Canal, subject to private rights, if any there be, the lands and lands under water described as follows:

Beginning at the crossing of the Rio Chagres and the 100-foot contour, said crossing being approximately two miles above the Alhajuela dam site, thence along the left bank of the Rio Chagres following the 100-foot contour to its crossing of the Que Moja Polla; thence following the Que Moja Polla to its headwaters in the saddle between the 280-foot contours in the Alhajuela plateau; thence following through said saddle, in a northeasterly direction, to the 260-foot contour; thence following the 260-foot contour up and around the Rio Chagres and its tributaries on the left bank to its crossing of the Rio Chagres at latitude 9° 16′ and longitude 79° 31′; thence following along the 260-foot contour down the right bank of the Rio Chagres to a point opposite Dos Bocas; thence following the 260-foot contour up the left bank of the Rio Pequeni in a generally northerly direction to its crossing of the river at latitude 9° 22′ 45″ and longitude 79° 31′ 45″; thence following the 260-foot contour down the right bank of the Rio Pequeni and up the left bank of the Rio Boqueron to its crossing of the Boqueron at latitude 9° 23′ and longitude 79° 34′; thence down the right bank of the Boqueron, the Rio Pequeni, and the Rio Chagres always along the 260-foot contour to the northern boundary of the tract occupied by the Alhajuela Hydrographic Station; thence leaving the 260-foot contour, in an easterly direction, to and along the northern boundary of the aforesaid tract to a monument numbered 175 which is on the 100-foot contour on the right bank of the Rio Chagres; thence along the 100-foot contour upstream to the point of beginning, said point of beginning being on latitude 9° 13′ 09″ and longitude 79° 37′ 14″.

For that part above the dam site the continuous 260-foot contour is the boundary line, except where it leaves the Alhajuela Lake basin. In such case the boundary line is the 260-foot contour up to the middle line of the saddle, and thence it follows along the middle line of the saddle to the 260-foot contour on the opposite side, and thence along the 260-foot contour of the basin until the next low saddle is encountered, where the same procedure is followed. In that part below the dam site or outside the basin area there is included, in addition to the land already described, the area within the isolated 260-foot contour on the right bank of the river and just to the north of the dam site, and also the tract now occupied by the Alhajuela Hydrographic Station, which is described as follows:

Beginning at a monument numbered 175, which is on the 100-foot contour on the right bank of the Rio Chagres and 25 feet north of the Alhajuela

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water stage register, the northern boundary line has an azimuth of 85 degrees and extends a distance of 2,400 feet, more or less, to a monument numbered 37-½, which is on the 100-foot contour on the left bank of the Quebrada Madronal; thence following the 100-foot contour down the left bank of the Quebrada Madronal and up the right bank of the Rio Chagres to monument 175, the point of beginning

The total area to be taken over is twenty-two (22) square miles, more or less, of which the basin area comprises twenty-one and two-tenths (21.2) square miles, and the part below the dam site comprises the balance of eight-tenths (0.8) of a square mile. In the above description references to latitude and longitude are approximate only.

The entire area described above is shown on blueprint No. 6071-1, marked "The Panama Canal Map of the Alhajuela Basin," dated May 15, 1924.

IT IS FURTHER ORDERED, by virtue of the authority of said treaty, that said tract of land and land under water be, and the same is hereby, declared to be a part of the Canal Zone and subject in perpetuity to the use, occupation, and control of the United States of America under the terms of said treaty.

This Executive Order is made for the purpose of correcting the description of the Alhajuela Lake basin area and including therein portions of the property actually segregated but not included in the original description, and making the previous Executive Orders, the Proclamation of the Acting Governor of The Panama Canal, and the acts of the Canal Zone officials apply thereto. It is therefore ordered that the description of the Alhajuela Lake basin area as appearing in this Executive Order shall be regarded hereafter for all purposes as the true and correct description of said area. It is further ordered that the Proclamation of the Acting Governor of The Panama Canal, dated February 26, 1924, declaring said area segregated for the use and occupation of The Panama Canal; the possession of said area taken by The Panama Canal in behalf of the United States under date of February 1, 1924, and continued since that date; and the Executive Order of the President made on the 26th day of February, 1924, providing that said area shall be a part of the Balboa Division of the Canal Zone under the jurisdiction of the United States District Court of the Canal Zone shall apply to the entire area included in the description set forth herein and shall be deemed amended accordingly; and that all acts done within said territory by the authorities of The Panama Canal since the first day of February, 1924, be, and the same are hereby, expressly ratified and confirmed and made as valid and effectual as if this Order had been made prior to February 26, 1924.

IT IS FURTHER DECLARED that this Order shall take effect and be in force from and after the date hereof.

CALVIN COOLIDGE

THE WHITE HOUSE,
June 5, 1924.

[No. 4019.]

GOVERNMENT PRINTING OFFICE